



CHAPTER cvii.

An Act to increase the number of the wards and of the council of the borough of Tynemouth and for other purposes. A.D. 1904
[22nd July 1904.]

WHEREAS the borough of Tynemouth (hereinafter called "the borough") is a borough subject to the Acts relating to municipal corporations and under the government of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation") acting by the council:

And whereas the borough is at present divided into six wards and has eighteen councillors and six aldermen:

And whereas owing to the increase of population and of the rateable value of property in the borough it is expedient that the borough be re-divided into nine wards and that the number of the aldermen and councillors be increased:

And whereas it is expedient that the time prescribed by section 9 of the Electric Lighting Act 1882 for filling up and making up the accounts of the electricity undertaking of the Corporation be altered:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas an absolute majority of the whole number of the council of the borough at a meeting held on the twenty-fifth day of November one thousand nine hundred and three after ten clear days' notice by public advertisement of the meeting and of the purpose thereof in the *Shields Daily News* a local newspaper circulating in the borough such notice being in addition to the ordinary notices required for summoning that meeting resolved that the council should promote in the next session of Parliament a Bill for effecting the purposes aforesaid:

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And whereas the council have determined that the costs and expenses in relation to the promotion of this Act be defrayed out of the borough fund and borough rate :

And whereas the resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the sixth day of January one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the First Schedule to the Borough Funds Act 1903 consented to the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say :)—

Short title.

1. This Act may be cited as the Tynemouth Corporation Act 1904.

Interpretation.

2. The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending that Act.

Commencement of Act.

3. This Act shall come into operation on the first day of November one thousand nine hundred and four which date is hereinafter referred to as the commencement of this Act Provided that for the purposes of all proceedings preliminary to and connected with the municipal elections of one thousand nine hundred and four and of section 14 of this Act this Act shall come into operation on its passing.

Division of borough into wards.

4. The borough shall be divided into nine wards the names and boundaries whereof are set forth in the First Schedule to this Act and shown on the ward plan hereinafter mentioned but if there be any discrepancy between that plan and the said description the description shall prevail.

Deposit of ward plan.

5. A ward plan signed in duplicate by the Right Honourable Lord Balfour of Burleigh Chairman of the Committee of the House

of Lords to whom the Bill for this Act was referred shall within one week from the passing of this Act be deposited as to one copy in the Parliament Office of the House of Lords and as to the other copy with the town clerk at his office and copies of the said plan certified by the town clerk shall be sent as soon as may be after such deposit to the Director-General of His Majesty's Ordnance Survey and to the Local Government Board. A.D. 1904.

6. Copies of the ward plan deposited with the town clerk or any extract therefrom certified by him to be true shall be received by all courts of justice and elsewhere as *prima facie* evidence of the contents of such plan and such plan shall at all reasonable times be open to the inspection of the persons liable to any rate leviable within the borough and all persons so liable shall be entitled to a copy of or extract from such plan certified by the town clerk on payment of a reasonable fee for every such copy or extract. Copies of deposited ward plan to be evidence.

7. The borough shall have nine aldermen and twenty-seven councillors and each of the several wards shall return three councillors. Number of council.

8.—(1) The first councillors for the nine wards and the dates of their several retirements shall be as set forth in the Second Schedule to this Act. As to assignment and rotation of councillors.

(2) On the first day of November one thousand nine hundred and four there shall be elected one councillor for the Percy Ward three councillors for the Linskill Ward one councillor for the Dockwray Ward one councillor for the Central Ward three councillors for the Rudyerd Ward three councillors for the Trinity Ward one councillor for the Milbourn Ward one councillor for the Preston Ward and one councillor for the Collingwood Ward.

(3) The three councillors elected for the Linskill Ward the Rudyerd Ward and the Trinity Ward respectively shall retire as follows :—

The councillor for each ward who is elected by the smallest number of votes on the first day of November one thousand nine hundred and five :

The councillor for each ward who is elected by the largest number of votes on the first day of November one thousand nine hundred and seven :

The other councillor for each ward on the first day of November one thousand nine hundred and six.

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(4) If by reason of an equality of votes or otherwise any question shall arise as to which of the councillors ought to retire on any of the said dates the council shall at any meeting not later than the next quarterly meeting of the council after the day of election determine the order in which such councillors shall retire.

Additional
aldermen and
rotation of
aldermen.

9.—(1) On the ninth day of November one thousand nine hundred and four the council shall elect three aldermen for the borough in the place of the aldermen then going out of office and three additional aldermen and the six aldermen so elected shall go out of office as follows:—

The five aldermen who are elected by the largest number of votes on the ninth day of November one thousand nine hundred and ten:

The other alderman on the ninth day of November one thousand nine hundred and seven.

(2) On the ninth day of November one thousand nine hundred and seven the council shall elect four aldermen in the place of the aldermen then going out of office and on the ninth day of November one thousand nine hundred and ten the council shall elect five aldermen in the place of the five aldermen then going out of office and on the expiration of each succeeding period of three years after the last-named date the number of aldermen who shall go out of office by rotation shall be alternately four and five instead of one-half as prescribed by the Municipal Corporations Act 1882.

(3) If by reason of an equality of votes or otherwise any question shall arise as to which of the aldermen ought to retire on the ninth day of November one thousand nine hundred and seven or the ninth day of November one thousand nine hundred and ten the council at their meeting on the said day or at a subsequent meeting not later than the next quarterly meeting of the council shall determine which of the aldermen shall go out of office on the said respective dates.

Provision for
filling casual
vacancies.

10. In the event of avoidance of office by death or otherwise by any of the first councillors named in the Second Schedule to this Act before the first day of November one thousand nine hundred and four the person filling the place of such councillor shall hold office until the time mentioned in the said Second Schedule for the going out of office of the person in whose place he is elected and he shall then go out of office.

11. Anything to be done under the provisions of the Municipal Corporations Acts the Ballot Act 1872 and any other Act or Acts in relation to elections and other matters incidental thereto or by the mayor aldermen or town clerk of the borough in relation to each of the nine wards before the commencement of this Act may be done in like manner as if such wards were and had been wards of the borough existing at the time of the passing of this Act.

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Further provisions as to elections &c.

12. For the purposes of the ward rolls to be made after the passing of this Act under the Municipal Corporations Acts and in relation to the functions and offices of the mayor town clerk and other officers under those Acts the borough shall be deemed to have always been divided into nine wards. Provided that no such ward roll so to be made as aforesaid shall be deemed to be invalid by reason only that the same shall not have been made and published and any notice or notices given at the time or times required prior to the passing of this Act if such roll or notice or notices be made given or published as soon after the passing of this Act as may be practicable.

Ward rolls.

13.—(1) If a majority of the whole of the council agree to petition and the council thereupon petition the King for an increase of the number of the aldermen and councillors of the borough it shall be lawful for His Majesty by Order in Council to increase the number of such aldermen and councillors and to apportion such councillors among the wards of the borough to provide for the retirement of such additional aldermen and to make such other provisions as appear to His Majesty to be necessary or proper for carrying such purposes into effect.

Provision for increasing number of aldermen and councillors.

(2) Such petition shall be referred to a committee of the Lords of His Majesty's Privy Council provided that one month at least before the petition is taken into consideration by the said committee notice thereof and of the time when it will be so taken into consideration shall be published in the London Gazette and otherwise as the said committee direct for the purpose of making it known to all persons interested.

(3) The expenses of and incidental to any proceedings under this section including the remuneration of any commissioner appointed by the said committee for the purposes of this section at the rate of five guineas for every day he is employed and including the travelling and other expenses of such commissioner shall be defrayed by the Corporation out of the borough fund by order of the council of the borough.

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14. Subject to the provisions of this Act—

Application
of Municipal
Corporations
Acts.

(1) All elections vacations of office and rotations shall be governed by the Municipal Corporations Acts :

(2) All the provisions of the Municipal Corporations Acts with respect to the division of the borough into wards or the alteration of wards shall apply to the borough.

Altering date
for filling up
&c. annual
accounts for
electric
lighting.

15. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Corporation shall after the passing of this Act be filled up on or before the twenty-fourth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the commencement of this Act be read and have effect as regards the electric lighting undertaking of the Corporation as if the twenty-fourth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

Costs of Act.

16. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate.

The SCHEDULES referred to in the foregoing Act. A.D. 1904.

THE FIRST SCHEDULE.

NAMES AND BOUNDARIES OF WARDS.

PERCY WARD.

So much of the area of the borough of Tynemouth as is contained within a line drawn from a point on the borough boundary at the River Tyne fifty-five yards east of Percy Square in a north-westerly direction across Tynemouth Road to the centre of Mariners' Lane at its southern end thence northward along the centre of Mariners' Lane to a point opposite the centre of the west end of Horsley Terrace thence eastward along the centre of Horsley Terrace to the centre of Birtley Avenue northward along the centre of Birtley Avenue to Manor Road thence six hundred and sixty yards in a north-westerly direction along the centre of the Shields and Blyth main road thence seven hundred and thirty yards in a south-westerly direction along the field boundaries thence one hundred and eighty-three yards in a north-westerly direction to the boundary line of the township of Tynemouth thence generally in a northerly direction along the said boundary line to the northern boundary line of the borough of Tynemouth thence in an easterly direction along the said northern boundary line of the borough of Tynemouth to the sea thence in a southerly direction along the borough boundary on the sea-coast to the north bank of the mouth of the Tyne and thence in a westerly direction along the borough boundary on the River Tyne to the point of commencement.

LINSKILL WARD.

So much of the area of the said borough as is contained within a line drawn from a point in the centre of the Tynemouth Road opposite the centre of the south end of Mariners' Lane and proceeding in a south-westerly direction along the centre of Tynemouth Road to the point of its intersection with the centre line of Preston Road thence northward along the centre of Preston Road to its extreme north end thence one thousand and thirty-six yards or thereabouts in a north-easterly direction along the boundaries of the fields to the centre of the Shields and Blyth main road thence in a south-easterly direction along the centre of the said Shields and Blyth Road

A.D. 1904. — and Manor Road to a point opposite the centre of the north end of Birtley Avenue thence in a southerly direction along the centre of Birtley Avenue to the centre of Horsley Terrace thence westward along the centre of Horsley Terrace to the centre of Mariners' Lane thence southward along the centre of Mariners' Lane to the point of commencement in Tynemouth Road.

DOCKWRAY WARD.

So much of the area of the said borough as is contained within a line drawn from a point in the centre of Tynemouth Road opposite the centre of the south end of Mariners' Lane in a south-easterly direction to a point on the boundary of the borough on the north bank of the River Tyne fifty-five yards east of Percy Square thence westward along the said borough boundary on the River Tyne to a landing-place south of the Kirkcaldy Arms public-house in Bell Street thence northward along the centre of the said landing-place to the centre of Bell Street thence eastward along the centre of Bell Street to a point opposite the centre of Tullis' Bank thence northward along the centre of Tullis' Bank and the eastern side of Dale's Bank to a point on the south side of Dockwray Square opposite the centre of Tyne Street thence westward along the centre of Tyne Street to a point opposite the centre of the south end of Church Street thence northward along the centre of Church Street to a point in the centre of Tynemouth Road thence in an easterly direction along the centre of Tynemouth Road to the point of commencement.

CENTRAL WARD.

So much of the area of the said borough as is contained within a line drawn northward from the borough boundary on the River Tyne along the centre of Young's Dock landing across Liddell Street along the centre of Library Bank to Howard Street along the centre of Howard Street to a point opposite the centre of the east end of Union Street thence westward along the centre of Union Street to a point opposite the centre of the south end of Camden Street thence in a northerly direction along the centre of Camden Street the centre of the west side of Northumberland Square and the centre of Upper Camden Street to a point in the centre of Tynemouth Road thence in an easterly direction along the centre of Tynemouth Road to a point opposite the centre of the north end of Church Street thence in a southerly direction along the centre of Church Street to a point in the centre of Tyne Street thence in an easterly direction along the centre of Tyne Street to a point on the south side of Dockwray Square opposite the east side of Dale's Bank thence in a southerly direction down the east side of Dale's Bank and the centre of Tullis' Bank to a point in the centre of Bell Street thence westward along Bell Street to a point opposite the centre of the landing-place which is opposite to the Kirkcaldy Arms thence southward along the centre of the said landing-place to the borough boundary on the River Tyne thence westward along the said borough boundary on the north bank of the Tyne to the point of commencement.

RUDYERD WARD.

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So much of the area of the said borough as is contained within a line drawn from a point on the borough boundary at the River Tyne twenty-seven yards east of the direct ferry landing in a north-easterly direction along the centre of the public roadway to a point opposite the centre of the south end of the Borough Road on the New Quay thence in a northerly direction along the centre of the Borough Road to the centre of Railway Terrace thence easterly along the centre of Railway Terrace and Railway Street to a point in the centre of Bedford Street thence in a northerly direction along the centre of Bedford Street to a point in the centre of Albion Street thence in an easterly direction along the centre of Albion Street to a point opposite the centre of the north end of Upper Camden Street thence in a southerly direction along the centre of Upper Camden Street the centre of the west side of Northumberland Square and the centre of Camden Street to a point in the centre of Union Street thence in an easterly direction along the centre of Union Street to a point in the centre of Howard Street thence in a southerly direction along the centre of Howard Street the centre of the Library Bank across Liddell Street and along the centre of Young's Dock landing to the borough boundary on the River Tyne thence westward along the said borough boundary on the River Tyne to the point of commencement.

TRINITY WARD.

So much of the area of the said borough as is contained within a line drawn from a point in the centre of the Grey Horse Quay on the borough boundary on the River Tyne westward along the centre of the Grey Horse Quay to the centre of the Bull Ring thence in a north-westerly direction along the centre of Collingwood Street and Coach Lane to a point opposite the centre of the north-east end of Howdon Road thence in a south-westerly direction along the centre of Howdon Road to a point opposite the centre of the east end of Meadow Well Lane thence along the centre of Meadow Well Lane to the north boundary of the North Eastern Railway thence in an easterly direction along the north boundary of the North Eastern Railway to its junction with the western boundary of the Preston Colliery Railway thence in a northward direction along the west boundary of the said Preston Colliery Railway to a point in the centre of the Newcastle turnpike thence easterly along the centre of the Newcastle turnpike to a point opposite the centre of the north end of Coach Lane thence in a southerly direction along the centre of Coach Lane to a point opposite the centre of the west end of Waterville Terrace thence eastward along the centre of Waterville Terrace to a point opposite the centre of the north end of the Borough Road thence in a southerly direction along the centre of the Borough Road to a point on the New Quay opposite the centre of the south end of the Borough Road thence in a south-westerly direction along the centre of a public roadway to a point on the boundary on the River Tyne twenty-seven yards east of the direct ferry landing thence in a southerly direction along the said

A.D. 1904. borough boundary on the River Tyne to a point in the centre of the east end of Grey Horse Quay.

MILBOURN WARD.

So much of the area of the said borough as is contained within a line drawn from a point on the borough boundary on the River Tyne westward along the Grey Horse Quay to the centre of the Bull Ring thence in a north-westerly direction along the centre of Collingwood Street and the Coach Lane to a point opposite the centre of the north-east end of Howdon Road thence in a south-westerly direction along the centre of Howdon Road to a point opposite the centre of Meadow Well Lane thence in a north-westerly direction along the centre of Meadow Well Lane to a point one hundred and ten yards south of the North Eastern Railway bridge which crosses Meadow Well Lane thence westward to the watercourse known as Chirton Dene thence in a south-easterly direction following the course of Chirton Dene through the West End Park across Howdon Road and through the 'Tyne Commissioners' Dock Estate to the outfall of Chirton Dene in the Albert Edward Dock thence along the dock wall in an easterly direction from the outfall of Chirton Dene to the borough boundary on the River Tyne thence in a northerly direction along the said borough boundary on the River Tyne to the point of commencement.

PRESTON WARD.

So much of the area of the said borough as is contained within a line drawn from the point of the intersection of the centre lines of Albion Street and Preston Road northward along the centre of Preston Road to its extreme north end thence three hundred and thirty yards in an easterly direction along the field boundaries thence in a north-westerly direction to the Preston Township boundary thence along the said boundary in a northerly direction to the northern boundary of the borough thence in a south-westerly direction along the said northern boundary of the borough to a field boundary seven hundred and thirty yards east of Billy Mill Lane thence along field boundaries first in a south-easterly direction for seven hundred and thirty yards then in a westerly direction for one hundred and thirty yards next in a south-easterly direction for two hundred and forty yards then in an easterly direction for one hundred and forty-six yards and next in a south-easterly direction to the west angle of the boundary wall of the Tynemouth Burial Ground thence southward along the western boundary of the said burial ground and along field boundaries to the west boundary of Preston Colliery Railway thence in a southerly direction along the west boundary of the said railway to a point in the centre of the Newcastle turnpike thence in an easterly direction along the centre of the Newcastle turnpike to a point opposite the centre of the north end of Coach Lane thence along the centre of Coach Lane to a point opposite the centre of the west end of Waterville Terrace thence eastward along the centre of Waterville Terrace Railway Terrace and Railway Street

to a point in the centre of Bedford Street thence northward along the centre of Bedford Street to a point in the centre of Albion Street thence eastward along the centre of Albion Street to the point of commencement. A.D. 1904.
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COLLINGWOOD WARD.

So much of the area of the said borough as is contained within a line drawn from a point on the borough boundary on the River Tyne at East Howdon in a northerly direction along the western boundary of the borough to its extreme north end thence in an easterly direction along the northern boundary of the borough to a field boundary seven hundred and thirty yards east of Billy Mill Lane thence along field boundaries first in a south-easterly direction for seven hundred and thirty yards then in a westerly direction for one hundred and thirty yards next in a south-easterly direction for two hundred and forty yards then in an easterly direction for one hundred and forty-six yards and next in a south-easterly direction to the north-east angle of the boundary wall of the Tynemouth Burial Ground thence southward along the western boundary of the said burial ground and along field boundaries to the west boundary of Preston Colliery Railway and thence in a southerly direction along the west boundary of the said Preston Colliery Railway across the Newcastle turnpike until its junction with the north boundary of the North Eastern Railway thence westward along the north boundary of the North Eastern Railway to the centre of Meadow Well Lane thence southward along the centre of Meadow Well Lane to a point one hundred and ten yards south of the North Eastern Railway Bridge which crosses Meadow Well Lane thence westward to the watercourse known as Chirton Dene thence in a south-easterly direction following the course of Chirton Dene through the West End Park across Howdon Road through the Tyne Commissioners' Dock Estate to the outfall of Chirton Dene at the Albert Edward Dock thence in an easterly direction from the outfall of Chirton Dene along the dock wall to the borough boundary on the River Tyne thence in a south-westerly direction along the said borough boundary on the River Tyne to the point of commencement.

A.D. 1904.

THE SECOND SCHEDULE.

NAMES OF FIRST COUNCILLORS AND DATES OF RETIREMENT.

Name of Ward.	Names of Councillors.	Date of Retirement in every Case 1st November.
Percy Ward -	John Arnot Williamson - George Dodds Gascoigne - One person to be elected on the 1st day of November 1904.	1905. 1906. 1907.
Linskill Ward -	Three persons to be elected on the 1st day of November 1904.	The dates named in section 8 of the foregoing Act.
Dockwray Ward -	George Stephenson - - - Thomas Coulson - - - One person to be elected on the 1st day of November 1904.	1905. 1906. 1907.
Central Ward -	Joseph Alexander Richmond Ellis John Chambers - - - One person to be elected on the 1st day of November 1904.	1905. 1906. 1907.
Rudyerd Ward -	Three persons to be elected on the 1st day of November 1904.	The dates named in section 8 of the foregoing Act.
Trinity Ward -	Three persons to be elected on the 1st day of November 1904.	The dates named in section 8 of the foregoing Act.
Milbourn Ward -	James Robinson - - - John Hewitson Tebb - - - One person to be elected on the 1st day of November 1904.	1905. 1906. 1907.
Preston Ward -	George Hills Hogg - - - David Charles Hibbs - - - One person to be elected on the 1st day of November 1904.	1905. 1906. 1907.
Collingwood Ward	Benjamin Hewitt - - - Ramsay Kendall Fenwick - One person to be elected on the 1st day of November 1904.	1905. 1906. 1907.

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